

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 8, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Cook and Dr. Rinne, agenda item #19 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Rinne and Mr. Esquibel, agenda items #28(b) and #28(b) were removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on May 26, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing for a transfer of retail liquor license application filed with the City Clerk’s Office for Big D Oil Co., d/b/a Big D Oil #29, 100 North Greeley Hwy., Cheyenne, Wyoming (license currently held by Appaloosa Enterprises LLC d/b/a Sanford’s Grub & Pub). There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to the Finance Committee.

Mayor Orr opened a public hearing for a bar and grill liquor license application filed with the City Clerk’s Office for Appaloosa Enterprises, LLC d/b/a Sanford’s Grub & Pub, 115 E. 17th St., Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to the Finance Committee.

ORDINANCE – 3rd READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. Luna moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4308)

ORDINANCE – 3rd READING – Amending Sections 1.4.3, 2.1.1, 2.1.2, and 4.2.5 of the Unified Development Code of the City of Cheyenne, Wyoming, to define and clarify the purpose of remainder lots. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4309)

ORDINANCE – 3rd READING – Amending Section 2.2.6 of the Unified Development Code of the City of Cheyenne, Wyoming, to modify time limits associated with temporary uses. Mr. Case moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. (#4310)

ORDINANCE – 3rd READING – Amending Sections of Article 2 of the Unified Development Code of the City of Cheyenne, Wyoming, to modify posted notice requirements for site plans and administrative approvals, clarify procedures for modification of site plans, modify authority to initiate text amendments, and modify criteria for variance approval. Mr. Case moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4311)

ORDINANCE – 2nd READING – Appropriating moneys for the City of Cheyenne, Wyoming for various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2020 and ending June 30, 2021. (Postponed from May 26, 2020). Joe Dougherty provided comments, concerns and inquiries relating to proposed budget allocations, use of reserves since September 2018, general fund expenditures, responsibility to tax payers, use of Solid Waste Fund and previous salary adjustments for specific staff members. Mayor Orr advised responses to Mr. Dougherty’s inquiries would be fourth coming and reported some pay increases were in response to inadequacies involving salary and marketability. Mayor Orr expressed pride in her administration for bringing most employees up to market minimum. Comments were made regarding resolutions that outlined reappropriations that were directed towards courthouse project and a reappropriation to balance the budget. Amber Ash, DDA Executive Director, advised she was available for any questions and stated she appreciates DDA budget considerations. Lynn Huylar, Safe Harbor, provided information and statistics related to child abuse and unemployment and explained that by removing funding for the agency, this may result in an increase of future cases. Mr. Cook expressed appreciation to Ms. Huylar for her comments and the importance of funding social services programs such as Safe Harbor. Upon inquiry by Mayor Orr, Ms. Huylar advised that CARES Act funding was not designated to non-profits during the first round of CARES Act allocations. Ms. Huylar reported the agency is actively looking into other grant opportunities and funding sources, noting fund raising has been halted due to the COVID-19 Pandemic. Mayor Orr provided additional information relating to current and projected CARES Act funding opportunities. Heidi McNeil, Alcohol Receiving Center (ARC), provided comments relating to the importance and success of the program and commented on support she has received from the community and prior program participants. Ms. McNeil expressed concern for the future of the program and the lives of those affected by alcohol addiction and inquired as to what agencies/programs may be able to take up the work if the center closes. Comments were expressed regarding appreciation of the program and seeking a solution to the

funding deficit. Erin LeBlanc, Laramie County Senior Services, advised she has received positive reinforcement for the program from the community since the last council meeting and reinforced the need to continue funding for the program. Ms. LeBlanc expressed deep concern regarding what the budget cut would mean for meal services for senior citizens and advised that due to the pandemic, they are serving additional meals. Mayor Orr advised that the CARES Act is currently working toward working with seniors and food needs. Ms. LeBlanc, upon inquiry, advised they have started receiving some CARES Act funds that are very Covid-19 specific. Comments were made regarding uncertainty felt during the pandemic by seniors relating to the health and available services. Mayor Orr advised that due to the uncertainty of future funding availability, she anticipates the FY 2021 budget will be revised as necessary moving forward which may result in funding becoming available for certain agencies. Cara Carpenter and Charles Detridge commented on a peaceful protest they recently attended against police brutality and thanked Mayor Orr for her attendance. They further inquired as to the Police Chief and City's position on the following issues: Defunding of Police Departments, current and proposed budgets, use of force training, use of appropriate resources for mental health issues, crime and racial divide. Chief Brian Kozak, Police Department, advised there is an annual report on the city website involving data of demographics of crimes and calls for service. Chief Kozak advised his department is launching a new diversion program where people can be diverted to support programs for addiction and mental health issues instead of being arrested. Upon inquiry, information was provided related to non-profit vs. for profit status of jails, prisons and transitional services. Mayor Orr expressed appreciation to the Police Department and acknowledged the departments multiple recognitions. Chief Kozak reported the Police Department follows best practices based on recommendations and commented on the following: citizens who are in crisis, extensive training, robust volunteer program and a citizens advisory committee that makes sure they are addressing community needs. He encouraged the public to attend the citizens academy and get involved with the department. Upon inquiry, Chief Kozak provided information on 2 armored vehicles the department has and what they are used for based on policy. Brandi Bristow and Karen Miller spoke in opposition of defunding of ARC program, provided personal history of their success through the program and spoke in support of the program and program funding and requested consideration for continued funding of the program. Mayor Orr explained that the budget may be reviewed quarterly in a measured approach to determine what services could be funded or partially funded throughout the fiscal year and that some services are being funding through the CARES Act and clarified the hospital is given funding to provide to the social service providers. Karen Miller, ARC, further noted she appreciates the approach as the pandemic has been catastrophic and advised services provided through ARC are more cost effective than when they are provided at the hospital. Reporting for Committee of the Whole, Dr. Rinne moved to approve on second reading, seconded by Mr. White. Dr. Rinne moved to amend by increasing the Fire Department's budget by \$57,687.00 and by raising the revenue from reserves in the same amount, seconded by Mr. Shanor. Mayor Orr advised that pursuant to Roberts Rules of Order, she is requesting all future amendments for the budget ordinance be submitted in writing prior to the final budget reading on 06-16-2020 for the benefit of the public and to allow the City Treasurer time to calculate proposed changes. Mr. Shanor provided information on the amendment explaining the initial proposed budget had a shortage of a little over \$300,000 related to the collective bargaining agreement including 3 employees and longevity pay that was not included in the budget, after negotiations and including a reduction, the remaining unfunded liability is what the amendment is for. Dr.

Rinne confirmed the latest figure provided by the City Treasurer is \$57,687.00. Michael O'Donnell, City Attorney, noted that the motion by Dr. Rinne is well taken based on discussion that occurred at the 5-26-2020 Special Meeting. Robin Lockman, City Treasurer, confirmed the dollar amounts presented by Dr. Rinne are correct. Motion to amend carried. Voting "yes" all members of the governing body. Mayor Orr upon inquiry, confirmed that budget amendments are required to be submitted in writing a few hours prior to the Special Meeting on 6-16-2020 to allow for publication for the benefit of the public and to allow the treasurer to perform accurate calculations. Mayor Orr further stated she does not preside over the Committee of the Whole and that if amendments are to be submitted in writing prior to that meeting, Dr. Rinne as Council President will make that determination. Motion carried. Voting "yes" – all members of the governing body. The following is a summary of the proposed budget, including the aforementioned amendments: General Fund, \$50,572,083; Weed and Pest, \$539,308; Youth Alternatives Grants, \$553,690; Development Impact Fees, \$175,000; Recreation Programs, \$1,548,033; Community Development Block Grant, \$790,555; Law Enforcement Grants, \$196,278; Transportation Planning, \$888,242; Transit, \$2,644,634; Juvenile Justice, \$93,725; Special Friends, \$90,189; One Percent Sales Tax, \$11,033,691; Specific Purpose Option Tax, \$673,535 Youth Activities, \$18,000; Golf Facilities, \$400,000; Fleet Maintenance, \$3,969,148; Solid Waste Management Fund, \$26,564,476; Civic Center, \$1,905,363; Ice & Events Center, \$691,404; Perpetual Care, \$5,000; Total City, \$103,352,354; Water Enterprise, \$34,310,945; Sewer Enterprise, \$14,661,650; Total Appropriation, \$152,324,949.

ORDINANCE – 2nd READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, and Section 5.12.120, Special Use Areas-Special Event Permit of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 4, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Luna moved to approve on second reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated 6-1-2020, seconded by Mr. White. Mr. Roybal reviewed the substitute amendments which include creating special areas or districts in which possession of open containers and consumption of alcoholic beverages are permitted. Amber Ash, DDA Executive Director, advised the proposal for open consumption is something that was recently approved in Casper and that a resolution must be adopted specifically for events, noting this requirement will allow for individual evaluation of proposed events. Voting "yes" – all members of the governing body. Dr. Rinne commented on the process of the resolution affiliated with this ordinance relating to a proposed Summertime on Streets event scheduled for June 20th. It was requested that this item be heard on third and final reading at the 6-16-2020 Special Meeting of the Governing Body. City Clerk Kris Jones explained there was discussion of agenda items #12 and #26 being heard on third and final reading at the 6-16-2020 Special Meeting of the Governing Body. City Attorney Michael O'Donnell advised this item is referred to Finance Committee on 6-15-2020 and will appear on the agenda for special meeting next Tuesday night. Main motion as amended carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 8.40.063, Food Service Establishments-Sidewalk Cafes, of Chapter 8.40, Food and Food Service Establishments, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Luna moved to approve on second reading, seconded by Mr. White. Mr. White explained that this item and the

previous agenda item are companion agenda items and will be heard on third and final reading at the 6-16-2020 Special Meeting of the Governing Body. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Granting a Non-Exclusive Franchise to Union Telephone Company within the rights-of-way of the City of Cheyenne, Wyoming. Mr. Luna moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending Section 2.76.020, Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming (Sponsor – Mr. White) – referred to Public Services Committee.

ORDINANCE – 1st READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from LR (Low-Density Residential) to MUR (Mixed-Use Residential Emphasis) for property generally located northeast of the intersection of Kelley Drive and Old Faithful Road (Sponsor – Mr. Case) – referred to Public Services Committee.

ORDINANCE – 1st READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from LI (Light Industrial) to MUB (Mixed-Use Business Emphasis) for property generally located northeast of the intersection of west 21st Street and Reed Avenue (Sponsor – Mr. Case) – referred to Public Services Committee.

[CA] RESOLUTION – Temporarily suspending Resolution No. 6023 which establishes that all revenue from City Contract No. 5902 to be split evenly between the City of Cheyenne Solid Waste Enterprise fund, the Board of Public Utilities, and the newly established Belvoir Ranch Recreation Special Revenue Fund. Motion (per Consent Agenda) carried. (#6061)

RESOLUTION – Temporarily suspending Resolution No. 5635 which establishes guidelines for the maximum amount of excess revenue that may be collected for the operation of Cheyenne’s Solid Waste Fund. Mr. Luna moved to adopt, seconded by Mr. White. Mr. Shanor advised he pulled this item off of the Consent Agenda out of principal due to all of the work that went into the resolution initially. He reported that money was being raised every year in rates to subsidize general fund until cap was put on. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Case, Mr. Cook, Mr. Luna and Mr. Shanor voting “no”. (#6062)

[CA] RESOLUTION – Declaring June 2020 as 307 First Month. Motion (per Consent Agenda) carried. (#6063)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2020 and ending June 30, 2021. Motion (per Consent Agenda) carried. (#6064)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2020 Budget of the City of Cheyenne

according to the provisions of W.S. §16-4-112 & 16-4-113 (Sponsor – Mr. Luna) – referred to Finance Committee.

[CA] RESOLUTION – Directing all sale proceeds received from the disposal of the City-Owned real property located at 610 West 7th Street, Cheyenne, Wyoming, to be deposited into the “Real Property Revolving Fund” (Sponsor – Dr. Rinne) – referred to Finance Committee.

[CA] RESOLUTION – Adopting to the future land use map in PlanCheyenne, the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County, amending the Land Use Category for property generally located along east Lincolnway generally between Henderson Drive and Ridge Road from Urban Residential and Public/Quasi-Public to Mixed-Use Residential and from Community Business to Mixed-Use Commercial (Sponsor – Mr. Case) – referred to Public Services Committee.

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$26,901.43 for the Board of Public Utilities pursuant to W.S. §16-4-502 (Sponsor – Mr. Laybourn) – referred to Finance Committee.

RESOLUTION – Creating a Special District for the ‘Summertime on the Streets Event’ to be held June 20, 2020, in which the possession of open containers is permitted between the hours of 11:00 a.m. and 4:00 p.m. (Sponsor – Mr. Roybal). City Clerk Kris Jones advised this item was originally thought to be approved at this meeting by suspension of rules, however, the item needs to be referred to Finance Committee. Mayor Orr referred the item to thFinance Committee.

[CA] A Coronavirus Aid, Relief, and Economic Security Act (CARES ACT) Airport Grant Agreement between the United States of America Federal Aviation Administration, the City of Cheyenne, The County of Laramie and The Cheyenne Regional Airport Board (CARES ACT Airport Grant). Motion (per Consent Agenda) carried. (#7184)

Contract Modification #3 to Contract #6918 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, to remove Furniture, Fixtures and Equipment (FF&E) Budget (Specific Purpose Sales Tax). Ben Hornok, TC Solutions and Project Manager, explained that the furniture was originally placed in the FCI Constructors budget and the modification would move it to City to control and manage this portion of the project budget. Mr. Hornok confirmed the modification amount of \$107,500.00 would be removed from FCI’s portion of the project budget. Comments were made supporting FCI’s project management. Mr. Hornok provided additional information relating to management of the project and efforts to keep the project on track for completion explaining there are potential delays resulting from the unexpected Covid-19 Pandemic. Mr. Hornok reported procurement of the furniture is in process. Upon inquiry, Mr. Hornok advised that he believes this change will provide greater control to ensure the project stays on track concerning budget funding. City Attorney Michael O’Donnell reported this project management approach has been historically successful. Joe Dougherty voiced concerns relating management of the project funding. Mr. Luna moved to approve in an amount not to exceed \$107,500.00, seconded by Mr. Esquibel. Comments were made supporting the modification and budget management of the project’s budget. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. (#6918)

Contract Modification #3 to Contract #6924 between the City of Cheyenne and TC Solutions, LLC, to add purchase and management of furniture, equipment, building commissioning, moving and signage. (Specific Purpose Sales Tax). Ben Hornok, TC Solutions, operating as owner representative for project, advised this modification will allow for the greatest city control of the project budget for quality and risks associated with the remainder of project. He advised he has been working with staff to make sure the project is completed as needed for functionality. Mr. Luna moved to approve in an amount not to exceed \$453,382.00, seconded by Mr. Esquibel. Motion carried. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook voting “no”. (#6924)

[CA] Contract Modification #1 to Contract #6927 between the City of Cheyenne and Wyoming Homeland Security for the Cheyenne Regional Emergency Response Team #7 extending the term of the grant through December 31, 2020. (DHS Grant). Motion (per Consent Agenda) carried. (#6927)

[CA] Contract Modification #1 to Contract #6976 between the City of Cheyenne and Reiman Corporation for additional construction services of the Evers Boulevard Reconstruction Project (2018-2022 1% Sales Tax). Motion (per Consent Agenda) carried. (#6976)

[CA] Contract Modification #1 to Contract #6960 between the City of Cheyenne and Reiman Corp. for the Christensen Railroad Overpass & Corridor Project for cost impacts associated with unforeseen site conditions which required design and construction modifications (6th Penny Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-23-20 for One (1) New 2019-2020 Daihatsu Hi-Jet S510P Mini-Truck for the City of Cheyenne, Cheyenne Botanic Gardens. (2015-2018 1% Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made of Special Meeting to be held Tuesday, June 16, 2020 at 6:00 p.m. via electronic conference meeting, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2020.

Announcement was made of Public Hearing to be held Tuesday, June 16, 2020 at 6:00 p.m. via electronic conference meeting, for proposed budgets for the City of Cheyenne and Board of Public Utilities for Fiscal Year 2020.

Under other business:

Mr. Esquibel commended Chief Kozak and the Police Department for meeting with the community last week and inquired as to the status of the Friday’s on the Plaza event. Mayor Orr advised it is anticipated that a further lift of restrictions of outdoor events by the Governor may be announced on June 15th, therefore allowing smaller scaled events including events on the plaza.

Mayor Orr reported that summer seasonal and part time hiring will occur for opening Community Recreation & Events facilities for services such as aquatics and ballfields.

Mayor Orr expressed appreciation to Chief Kozak and the Police Department for their integrity and training involving national recent events.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:01 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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